

On /That/ Statement by History Journal Editors

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I'm quoted with a few choice words this week in the *Times Higher Education* for [their piece on the already infamous statement](#) by a coalition of editors of history journals, who [equate CC-BY with plagiarism](#). Here's the quotation:

Martin Eve, a lecturer in English literature at the University of Lincoln, said the signatories were "guilty of either a gross distortion for their own benefit or crass ignorance...of licensing".

Here's the full text from which that was excerpted:

I believe these history journal editors are guilty of either a gross distortion for their own benefit, or crass ignorance on the matter of Creative Commons licensing. Openness cannot just refer to price; the ability to re-use material is crucial. Their conflation of "plagiarism" with a CC license, however, is totally unacceptable. Plagiarism is passing off somebody else's work as your own, without being credited. Any creative commons license requires attribution, but the editors here act as if "crediting" is some practice of which we remain unsure. Crediting is merely citation; we do it already. From these statements, these journal editors are either duplicitous or incompetent in my view and, quite frankly, are doing a great disservice to the field.

There's a further few thoughts that have struck me since then. Plagiarism is **not** a legal term that has any bearing upon licensing; it is a term from within the academy. In this case, copyright infringement would be unlikely; after all, the point of a CC license is to facilitate sharing. Plagiarism, conversely, could happen, but this would be nothing to do with a CC-BY license; it is a matter for the academic and their institution. This is why my "crediting is citation" aspect can hold true. We know how it will be credited in the academy because an academic who did not would lose their post.

Secondly, do these editors have any idea of the reach of a niche journal article in the humanities? It's tiny! Far from banging on about how terrible it is that people can use this material they should instead be more worried about the fact that hardly anybody reads this stuff. Quite frankly, they should be more concerned about being ignored. If somebody commercially uses work, done by an academic, for which the publisher paid them nothing, the academics themselves have lost nothing. Instead, society has gained by the use of RCUK-funded (or institutionally supported) material. We could also have good faith that people will cite properly, even in the commercial field, or that the CC license will be upheld in law to a satisfactory degree. After all, this has worked for CopyLeft licenses, such as the GPL. (This sentence originally erroneously read "After all, this has worked for CopyLeft licenses, such as the GPL". It was modified on Friday December 23rd at 08:32am as only ShareAlike CC licences are CopyLeft. Thanks to Mike Taylor for pointing this out.)

Thirdly, the idea that (especially in the humanities) academics' work will be exploited, except by the publisher, is ridiculous. They cry: "we do not want our authors to have to sign away their rights in order to publish with us". So, I assume, none of these journals requires a copyright transfer? You offer totally permissive licensing? If not, then I call hypocrisy. "Copyright: Authors will be required to assign copyright to the Economic History Society. Copyright assignment is a condition of publication and papers will not be passed to the publisher for production unless copyright has been assigned." All publishers want authors to sign over their copyright, nominally to protect the interests of their authors. The actual effect is always, though, that authors' rights are eroded so that publishers can continue their commercial exploitation, the only form of exploitation that they fail to mention.

Fourthly, **and this is extremely important**, the **bounds of CC-BY-NC licenses are unclear**.

Universities seem to me to be commercial entities. Publishers also seem to be commercial entities. This will mean that they cannot reuse this material. The bounds of "commercial" use are not delineated as clearly as is made out here and is extremely problematic for the all-but now privatised university.

Finally, in light of the above statements and the casual conflation of "plagiarism" with "CC-BY" that this piece enacts, I believe these editors to be either distorting the truth or ignorant. In either case, I think that they are incompetent because the damage that this kind of statement does cannot be underestimated. The Creative Commons licenses are Very Good Things (TM), but for those first encountering them now they will seem tarnished and that is why I feel they have done a great disservice to the field.